

Court No. - 29

Case :- WRIT - C No. - 33009 of 2018

Petitioner :- Harish

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Singh

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Pankaj Mithal, J.

Hon'ble Rajiv Joshi, J.

As prayed on behalf of learned counsel for the petitioner,
put up on 4th October 2018.

Order Date :- 1.10.2018

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By means of this writ petition, the petitioner seeks a direction upon respondent no. 3-Executive Engineer, Electricity Urban Distribution, Division First, Pashimanchal Vidhyut Vitran Nigam Ltd., District Hapur to decide his applications dated 20.4.2018 and 8.9.2018.

A perusal of the aforesaid applications reveal that the petitioner is disputing the correctness of the electricity bill on the ground that the meter reading is incorrect.

In view of the aforesaid facts and circumstances, as the dispute is regarding electricity bill, the petitioner has a remedy under paragraph 6.5 of the U.P. Electricity Supply Code 2005 (hereinafter referred to as the 'Code') to raise objection/dispute before the Executive Engineer.

In view of the aforesaid provision, we dispose of the writ petition with the liberty to the petitioner to raise the dispute in accordance with the provision before the Executive Engineer in furtherance of his applications dated 20.4.2018 and 8.9.2018. within a period of two weeks from today. In case, the petitioner so approaches the Executive Engineer, he may consider and decide the matter regarding the correctness of the bills in accordance with the paragraph 6.5 of the Code as expeditiously as possible preferable within a period of six weeks.

The writ petition stands disposed of. No order as to costs.

Order Date :- 4.10.2018

Akbar